

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY  
MARTINEZ, CA  
DEPARTMENT 32  
JUDICIAL OFFICER: JONI T HIRAMOTO  
HEARING DATE: 09/18/2026

ALL APPEARANCES WILL BE BY ZOOM.

The tentative ruling will become the Court's ruling unless, by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties

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**SPECIFY THE ISSUES to be argued.**

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Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

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**Submission of Orders After Hearing in Department 32 Cases**

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

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Meeting ID: 161 336 0625

Passcode: 180770

**Law & Motion**

1. 9:00 AM CASE NUMBER: C22-01571  
CASE NAME: JANE DOE VS. CONTRA COSTA BALLET CENTRE, AN ENTITY OF UNKNOWN TYPE  
HEARING ON SUMMARY MOTION  
FILED BY: CONTRA COSTA BALLET CENTRE  
**\*TENTATIVE RULING:\***

The Court on its own motion continues this hearing to October 16, 2026, at 9:00 a.m.

**2. 9:00 AM CASE NUMBER: C23-00131**

**CASE NAME: MADELINE SERAFIN VS. ROBERT SERAFIN**

**\*HEARING ON MOTION IN RE: MOTION TO LIFT STAY ON DISCOVERY FILED 8/17/26 BY MADELINE SERAFIN**

**FILED BY: SERAFIN, MADELINE**

**\*TENTATIVE RULING:\***

Plaintiff's motion to lift the stay on Discovery is granted. Parties may pursue discovery [1] exclusive of issues determined by the Family Court's Final Statement of Decision filed August 31, 2026, in Contra Costa County Case No. MSD21-02739, and [2] that is not related to the Burden note and related instruments, which are the subject of the case in federal court.

**3. 9:00 AM CASE NUMBER: C23-01988**

**CASE NAME: MATTHEW PARRY VS. GELCO FLEET TRUST**

**\*HEARING ON MOTION IN RE: TO FILE CERTAIN RECORDS WITH REDACTIONS AND CERTAIN RECORDS COMPLETELY UNDER SEAL**

**FILED BY: MERCEDES-BENZ USA, LLC**

**\*TENTATIVE RULING:\***

Before the Court is the motion of Defendant Mercedes-Benz USA, LLC (MBUSA or Defendant) for an order search Exhibits 10 and 41-1, and redacting personal information from Exhibits 27-2 and 38-2 (all attached to the Declaration of Alan Van Gelder in Opposition to MBUSA's Motion for Summary Judgment (Van Gelder Decl.)).

There are four documents at issue.

| Ex.                                                     | Request        | Description                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
|---------------------------------------------------------|----------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 38-2 to Van Gelder Decl.,<br><br>Ex. A to Brunner Decl. | Redaction only | MBUSA internal questionnaire with customer responses regarding a specific reported incident, which is not the subject of this lawsuit. Identifies the reporting customer's name and acronym of the customer's business.<br><br>Provided to MBUSA through its direct customer assistance service. Information is maintained by MBUSA as confidential in ordinary course of business.<br><br>Produced unredacted to Plaintiff pursuant to "Pioneer letter" notifying customer of disclosure to plaintiff's attorneys but not notifying of "public disclosure."<br><br>Brunner Decl, ¶ 7a.<br><br>Previously produced to Plaintiff in another litigation matter, Wolf |

|                                                          |                |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
|----------------------------------------------------------|----------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                                                          |                | Decl., ¶ 5                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 27-2 to Van Gelder Decl.,<br><br>Ex. B to Brunner Decl.  | Redaction only | <p>MBUSA “internal and third-party email communications involving MBUSA employees, MBUSA’s business partners, and a non-party customer, who reported on two specific vehicle incidents that are not the subject of this lawsuit. ...include[s] non-party customer’s name, business name, email address, and phone number as well as direct contact information (email address and direct dial) for employees of MBUSA and MBUSA’s business partner.</p> <p>MBUSA produced the document subject to the protective order ...without redactions of customer-identifying information (e.g., customer name and business, phone number, email address) pursuant to Pioneer Letter. MBUSA seeks to redact direct contact information, (phone numbers and email addresses, not names) of the MBUSA employees and MBUSA business partners</p> <p>Brunner Decl., ¶ 7b.</p> <p>Previously produced to Plaintiff in another litigation matter, Wolf Decl., ¶ 5</p>                                                                                                                                                                                                             |
| Ex. 10/ Van Gelder Decl;<br><br>/ Ex. C to Brunner Decl. | Sealing        | <p>MBUSA internal technical presentation to NHTSA about its analysis of Vehicle Owner Questionnaires. Prepared for a confidential business meeting on April 22, 2021 with NHTSA representatives to discuss MBUSA’s investigation and analysis, activities and next step in context of recall investigation. NHTSA accepted the information pursuant to 5 U.S.C. § 522(b)(4) &amp; (6). The presentation contains proprietary business data and technical information that is not publicly available that was prepared and used only in the context of a confidential investigation by MBUSA in response to NHTSA’s request. This was only a preliminary analysis and evaluation and was not part of the official recall materials that are publicly available. MBUSA marked it “Confidential Business Information” prior to designation in this case. Disclosure of the presentation would disclose aggregated incident data, including non-public reporting rates and case histories. Redaction would not adequately protect the confidentiality interests because the presentation as a whole contains confidential information.</p> <p>Brunner Decl., ¶ 8a.</p> |
| Ex. 41-1 to                                              | Sealing        | MBUSA internal data compilation that reflects customer complaints                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |

|                       |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |  |
|-----------------------|--|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|
| Van Gelder Decl.,     |  | and incident tracking entries tied to specific vehicles and case histories that are collected by MBUSA employees as part of its customer assistance procedure. Prepared for and produced in response to NHTSA's Information Request associated with NHTSA's Preliminary Evaluation. NHTSA accepted the information pursuant to 5 U.S.C. § 522(b)(4) & (6). The information is not publicly available and is kept strictly confidential in MBUSA's business records. These are non-public customer reporting entries and do not include complete technical information or analyses. This preliminary information is only gathered by MBUSA's personnel from each customer to be able to conduct candid product analysis. Redaction would not adequately protect the confidentiality interests at issue because customer -provided information, incident narrative, vehicle-specific information and product evaluation categories are integrated throughout the document. MBUSA designated the document as "confidential" pursuant to the Protective Order. |  |
| Ex. D to Bruner Decl. |  | Brunner Decl., ¶ 8b.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |  |

It is appropriate to adjudicate the sealing and redaction issues here pursuant to Cal. Rules of Court 2.550 and 2.551. Section (a)(3) of Cal. Rule of Court 2.550 provides that its sealing provisions cover "discovery materials that are used at trial or submitted as a basis for adjudication of matters other than discovery motions or proceedings." The documents here were attached to a declaration submitted by Plaintiff in opposition to a motion for summary judgment or adjudication. (Brunner Decl., ¶¶ 7-8.)

California Rule of Court 2.550(d) provides:

The court may order that a record be filed under seal only if it expressly finds facts that establish:

- (1) There exists an overriding interest that overcomes the right of public access to the record;
- (2) The overriding interest supports sealing the record;
- (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed;
- (4) The proposed sealing is narrowly tailored; and
- (5) No less restrictive means exist to achieve the overriding interest.

See also, *NBC Subsidiary (KNBC-TV) Inc. v Superior Court* (1999) 20 Cal. 4<sup>th</sup> 1178, 1218-19.

#### **Overriding Interest that Overcomes Right of Public Access**

MBUSA alleges that there is an overriding confidentiality interest in confidential business information in Exhibits 10 and 41-1, (Brunner Decl. Exs. C and D) and asserts that nonparty individuals have an

overriding privacy interest in their personally identifiable information in Exhibits 27-2 and 38-2 (Brunner Decl. Exs. A and B). MBUSA asserts public disclosure would create a substantial probability of harm, including (1), confusion, or misinterpretation of unverified / preliminary incident reports or incomplete technical information outside its intended analytical context and (2) exposure of sensitive identifying information of their-party individuals, who have not consented to their information being accessible to the general public. (Notice of MBUSA's Motion and Motion to file Certain Records with Redactions and Certain Records Completely Under Seal Pursuant to California Rules of Court 2.550, 2.551 and ¶ 13 of the Court – Entered Protective Order; Memorandum of Points and Authorities (Motion) filed July 6, 2026, 3:24-4:3.)

#### **Exhibits A & B to Brunner Decl.: Direct Business Contact Information**

MBUSA contends that redactions should be made to Exs. A and B to the Brunner Decl., in order to protect third party information about individuals “that is subject to their constitutionally protected privacy rights.” Defendant cites the high court’s observation in *U.S. Dept. of Def. v. Fed. Labor Relations Auth.* (1994) 510 U.S. 487, 500 that, “Many people simply do not want to be disturbed **at home** by work-related matters. Employees can lessen the chance of such unwanted contacts by not revealing their addresses to their exclusive representative. [...] **We are reluctant to disparage the privacy of the home**, which is accorded special consideration in our Constitution, laws and traditions. [...] Because the privacy interest of bargaining unit employees in nondisclosure of their home addresses substantially outweighs the negligible FOIA-related public interest in disclosure, we conclude that disclosure would constitute a ‘clearly unwarranted invasion of personal privacy.’” (Emphasis added.) MBUSA argues this supports the court finding an overriding privacy interest in the direct business contact information of MBUSA employees and the business contact information of its business partner. (Motion, at 5:24-7:5.) MBUSA argues that such employees’ direct business contact information may be subject to “various types of misuse” from “unsolicited attempts via calls, test messages or emails, over phishing attempts and email bombs, to risks of spoofing and malware.” (Motion, 9:10-12.) MBUSA further argues there is a risk of prejudice to MBUSA’s business operation, “If this [direct employee contact information] were publicly available, there is a significant risk of their email boxes and phone lines being inundated with customer inquiries, which would cause extreme disruption of their usual business duties.” (Motion, 9:13-20.) MBUSA offers there is “no legitimate public interest in this direct employee contact information.” (Motion, 9:21-28.)

In Reply, MBUSA argues, “there is a substantial risk that anyone with a complaint about a Mercedes-Benz or an Amazon product, service or delivery could inundate those persons by flooding their email boxes or telephoning them. That potential is very real and would be disruptive of their business duties and of their personal right to be left alone. (Reply at 5.)

The court notes a logical gap between the cases supporting the privacy rights of individuals to their home contact information, and MBUSA’s request to redact direct business contact information for employees. “Courts have frequently recognized the individuals have a substantial interest in the privacy of their home.” (*Puerto v. Superior Court* (2008) 158 Cal. App. 4<sup>th</sup> 1242, at 1252, *citing Planned Parenthood Golden Gate v. Superior Court* (2000) 83 Cal. App. 4<sup>th</sup> 347, 359.) In addition, Plaintiff notes that at least one business contact, Mr. Kurt Warner, was deposed in this litigation and did not request that his information be kept confidential. (Brunner Decl., Ex 4, Ex. 498.)

The risk that people “could” start calling those numbers is speculative, and could be addressed by the employee stating in their answering voice greeting that this is not the number for public complaints and such calls will not be returned. The risk that email boxes would be inundated is also speculative and is a risk generic to anyone with an email address.

The court finds that MBUSA has failed to identify an overriding interest in the business contact information of MBUSA employees and third party business employees, and further that MBUSA has failed to demonstrate a substantial probability of harm to the MBUSA employees and third party business contacts if business contact information is not redacted.

#### **Exhibits C & D to Brunner Decl.: MBUSA Submissions to the NHTSA**

MBUSA argues that Exhibits C and D to the Brunner Decl. should be sealed pursuant to Section 2031.060(b)(5) of California Code of Civil Procedure (CCP) which provides that a court may issue a protective order in discovery matters to provide that “a trade secret or other confidential research, development, or commercial information not be disclosed, or be disclosed only to specified persons or only in a specified way.” CCP § 2031.060(b)(5). (Motion, 7-8)

MBUSA argues there is substantial probability of prejudice and harm if Exhibits C and D are not sealed. “The information contained in those two documents is not conclusive and taken out of context may create confusion or misinterpretation of unverified / preliminary incident reports or incomplete technical information without the benefit full engineering analysis and further information. (Citing Brunner Decl. ¶ 8.) If publicly accessible the documents may be used unfairly to characterize produce performance outside its intended analytical context. Absent sealing, the information would become publicly accessible and could be used to the detriment of MBUSA. This creates a substantial probability of competitive harm, reputational damage, and loss of confidentiality protections that were accepted by the NHTSA when submitted pursuant to 5 U.S.C. § 552(b)(4) & (6), 49 CFR Part 512.” Motion at 10.)

Plaintiff recognizes that the protection of trade secrets may warrant the sealing of records, but argues that “commercial harm or embarrassment of a party does not alone justify sealing the entire record,” citing *People v. Jackson* (2005) 128 Cal. App. 4<sup>th</sup> 1009, 1024. In *Jackson*, the trial court sealed a search warrant affidavit, the grand jury transcript, and the indictment in a case alleging child molestation by a public figure defendant. The appellate court found that the trial court had carefully balanced the defendant’s right to a fair trial and the public’s right to know, and displayed sensitivity and insight into the issues which included the privacy interests of minors and unindicted alleged co-conspirators, and the interests of law enforcement in an ongoing investigation. While the appellate court upheld the trial court’s sealing of portions of the search warrant affidavit and the defendant’s motions to dismiss the indictment, it ordered the rest of the indictment unsealed. *Jackson*, 128 Cal. App. 4<sup>th</sup> at 1022-1030.

The *Jackson* Court explained the standard it followed regarding sealing records as follows.

“While commercial harm or embarrassment of a party does not alone justify sealing the entire record of a case (*Wilson v. American Motors Corp.* (11<sup>th</sup> Cir. 1985) 759 F.2d 1568, 1570–1571), it is appropriate to

seal certain records when those particular records contain highly sensitive and potentially embarrassing personal information about individuals. (See *Doe v. Blue Cross & Blue Shield United of Wisconsin* (7th Cir. 1997) 112 F.3d 869, 872 [acknowledging that it may have been appropriate for the district court to seal psychiatric records that though pertinent to the suit would have been “highly embarrassing to the average person”].)

*Jackson*, 128 Cal. App. 4<sup>th</sup> at 1024.

While there are ample grounds for ordering that such documents be kept confidential and not used for any purpose outside this litigation, that is not the same as meeting the standard for wholesale sealing of such documents from the public. Plaintiff argues (without factual support) that the material are more than five years old, and that the problems involving Amazon Sprinter Fleet vans were solved with the implementation of after market retrofits and recalls which are publicly known. Even without supporting evidence for Plaintiff’s argument, MBUSA does not assert any of this constitutes a trade secret, and the court agrees that commercial harm or embarrassment is not sufficient to warrant sealing Exhibits C and D.

The court also finds that the federal confidentiality protections of MBUSA’s submission to the NHTSA is not mandatorily dispositive for purposes of the court’s sealing analysis here. MBUSA cites no authority to the contrary.

In Reply, MBUSA argues that if submission to the NHTSA are not shielded, this would have a “chilling” effect on MBUSA’s efforts to comply with requests from the NHTSA in the future. “[C]andor in investigations for use by the NHTSA would be compromised if preliminary technical analyses and field reporting information specifically prepared in response to a request from NHTSA and submitted under a federal confidentiality provision loses such protection because the information is later produced in a civil lawsuit such as this one. Contrary to Plaintiff’s assertions, this is not a question of mere embarrassment but a concrete, forward-looking harm to candor in response to investigations initiated by the NHTSA by all automotive companies, not just MBUSA.” (Reply at 6-7.) The court observes that MBUSA’s legal obligation of candor to the NHTSA is defined by federal regulation and stands independent of any ruling made by the court in this case. The court further finds MBUSA’s thinly veiled threat to compromise its duty to respond honestly to future requests from a federal automotive safety agency to be odious, and insufficient to establish an overriding interest that outweighs a right of public access.

MBUSA has not shown that there is a substantial probability of harm if Exhibits C and D are not sealed. In *Press Enterprise v. Superior Court* (*Press Enterprise II*), 478 U.S. 1 (1986), the high court found that a trial court in California erred in sealing the transcript of a 41 day preliminary hearing in a criminal matter, in part because there were no specific findings demonstrating first that there was substantial probability that the defendant’s right to a fair trial will be prejudiced by publicity that closure would prevent, and second that reasonable alternatives to closure could not adequately protect the defendant’s fair trial rights. The Supreme Court rejected the California standard which required a finding of only a “reasonable likelihood of substantial prejudice. *Press Enterprise II*, 478 U.S. at 13-14. The court finds the descriptions offered by MBUSA are generic and speculative and do

not rise to the level of substantial probability of harm.

**Order:**

MBUSA's motion is **denied**, expect that with regard to Exhibit D, the court finds that while the information in Exhibit D is not highly embarrassing to the consumers listed, the privacy interests of individuals in their specific home address and home phone numbers (but not their business names, business addresses or business contact email or phone numbers) are important enough to order that all information of an individual's home address and home phone numbers be redacted and not publicly disclosed.

**4. 9:00 AM CASE NUMBER: C23-02833**  
**CASE NAME: DEBRA DRISCOLL VS. DOES 1 THROUGH 100, INCLUSIVE**  
**\*HEARING ON MOTION IN RE: SET ASIDE DEFAULT**  
**FILED BY: HOOVER FLOORS**  
**\*TENTATIVE RULING:\***

The Defendant's unopposed Motion to Set aside Default is granted. Defendant shall file its Answer or responsive pleading within 15 days of this September 18, 2026 order.

**5. 9:00 AM CASE NUMBER: C24-02701**  
**CASE NAME: ALYSS DORESE VS. AIDEN CIANI**  
**\*HEARING ON MOTION IN RE: ATTORNEY'S FEES PURSUANT TO CAL. CODE OF CIV. PROC.**  
**425.16(C)(1)**  
**FILED BY: DORESE, ALYSS**  
**\*TENTATIVE RULING:\***

The Court, having reviewed the moving and opposing papers on Plaintiff's Motion for Attorneys' Fees and Costs as having found good cause, hereby GRANTS IN PART Plaintiff's motion for attorney's fees against Defendant pursuant to Section 425.16(c)(1) of the California Code of Civil Procedure which is a subsection of the State of California's prohibition of strategic lawsuits against public participation ("Anti-SLAPP").

The Court hereby makes the following findings:

- 1) Plaintiff moved to strike per California's Anti-SLAPP procedure portions of Defendant's First Amended Cross-Complaint ("FACC");
- 2) The Court granted Plaintiff's Anti-SLAPP in part and struck portions of Defendant's FACC arising from Plaintiff's protected activity and thereby achieved a significant benefit from the motion and achieved the primary objective of said motion which was to strike Plaintiff's protected activity from Defendant's FACC;
- 3) Plaintiff therefore succeeded on their Anti-SLAPP motion;
- 4) Plaintiff's attorneys are therefore entitled to part of their reasonable fees and costs per

Section 425.16(c)(1) of the California Code of Civil Procedure.

The Court orders that Defendant shall pay \$8,000 in attorneys' fees to Plaintiff's counsel of record, Andrew Wolff, Esq. and the Law Office of Andrew Wolff, P.C., within 30 days of service of notice of entry of this Order.

**6. 9:00 AM CASE NUMBER: C25-00379**  
**CASE NAME: WELLS FARGO BANK, NATIONAL ASSOCIATION VS. CONCORD TECHNOLOGY CENTER PROPERTY OWNER, LLC**  
**\*HEARING ON MOTION IN RE: APPROVE RECEIVER'S FINAL REPORT AND DISCHARGE**  
**FILED BY: KIEFFER, DAVID**  
**\*TENTATIVE RULING:\***

The Unopposed Motion of David Keiffer for an Order Approving the Final Report of Receiver and Related Relief and Discharge of Receiver is **granted**. **The Court will execute the proposed order lodged May 1, 2026.**

**7. 9:00 AM CASE NUMBER: C25-00444**  
**CASE NAME: KYANI-DEVAREU HARRIS VS. COUNTY OF CONTRA COSTA COURT**  
**HEARING ON DEMURRER TO: COMPLAINT - SET BY COURT - ZOOM APPEARANCE IS OKAY**  
**FILED BY:**  
**\*TENTATIVE RULING:\***

Defendant Contra Costa County's Demurrer to Plaintiff Kyani-Devareu Harris's Complaint is **off calendar as moot**. Under Code of Civil Procedure section 472, a party may amend its complaint after a demurrer is filed but before the demurrer is heard if the amended complaint is filed and served no later than the date for filing an opposition to the demurrer. Plaintiff filed a First Amended Complaint on September 8, 2026, three days after the opposition deadline for a hearing on September 18, 2026. (Code Civ. Proc. § 1005(b).) Although the amended complaint was technically filed late, the Court would grant leave to amend in any event, and there is no purpose in examining the sufficiency of a superseded complaint.

**8. 9:00 AM CASE NUMBER: C25-01631**  
**CASE NAME: RACHEL HONG VS. JULIAN ORTON, III**  
**MOTION TO BE RELIEVED AS COUNSEL FOR PB DEVELOPMENT**  
**FILED BY: PB DEVELOPMENT GROUP, INC.**  
**\*TENTATIVE RULING:\***

The unopposed Motion to be Relieved as Counsel for PB Development is granted. The Court will execute the proposed order lodged with the Court on August 13, 2026. The order will become effective upon service of the order upon the client.

**9. 9:00 AM CASE NUMBER: C25-01631**  
**CASE NAME: RACHEL HONG VS. JULIAN ORTON, III**  
**MOTION TO BE RELIEVED AS COUNSEL AS TO RACHEL HONG**  
**FILED BY: HONG, RACHEL**  
**\*TENTATIVE RULING:\***

The unopposed Motion to be Relieved as Counsel for Rachel Hong is granted. The Court will execute the proposed order lodged with the Court on August 13, 2026. The order will become effective upon service of the order upon the client.

**10. 9:00 AM CASE NUMBER: C25-03313**  
**CASE NAME: MARCELO GIUDICI VS. HERBERT SANDOVAL**  
**\*HEARING ON MOTION IN RE: TO SET ASIDE AND VACATE THE CLERK ENTERED DEFAULT OF**  
**HERBERT OMAR SANDOVAL AND SUSANA REYES (HEARING ADVANCED TO 9/18/2026 / SEE M/O OF**  
**7/13/2026**  
**FILED BY: SANDOVAL, HERBERT OMAR**  
**\*TENTATIVE RULING:\***

Before the Court is a motion to set aside and vacate default ("Motion") filed by defendants Herbert Omar Sandoval and Susana Reyes ("Defendants"). Plaintiffs Giudici Academy NorCal, LLC and Marcelo Giudici ("Plaintiffs") oppose the Motion.

For the reasons set forth below, the Court's ruling is to GRANT Defendants' Motion.

**Background – Facts Alleged in Complaint**

Plaintiffs filed the complaint in this matter on November 12, 2025 ("Complaint"). Around November 13, 2024, Mr. Giudici and Mr. Sandoval entered into an oral contract to form a 50-50 partnership called Giudici Academy NorCal, LLC. (Complaint, ¶ 8 [Giudici Academy NorCal, LLC was to provide Brazilian Jiu-Jitsu classes].) Mr. Sandoval did not make an initial investment but promised that his share of capital would be forthcoming in the near future. (*Ibid.*) Despite being asked for his share of the investment repeatedly, Mr. Sandoval kept stating he would do so in the near future. (*Id.* at ¶ 10.) Defendants' daughter trained at the Academy without paying and obtained uniforms, rash guards, and other apparel free of charge as "the business partners' daughter." (*Ibid.*) Defendant Reyes controlled business operations, including email accounts, social media, and financials such as business account receivables and business account payables. (*Id.* at ¶ 11.)

For several months in a row, from July to September 2025, Mr. Sandoval withdrew an unauthorized \$1,500, as salary, despite Mr. Giudici saying this was not allowed, not agreed to, and improper as there was no employee structure for their business as they were partners and wages need to be taxed in a manner the business was not set up for. (Complaint, ¶¶ 12-14.) In October 2025, Mr. Giudici asked Defendants for the business debit card to purchase an iPad for business use and they refused, stating that they would discuss his use of the debit card in the future. (*Id.* at ¶ 15.) Defendants subsequently made multiple unauthorized withdrawals while on vacation in Florida and Mr. Giudici exercised his fiduciary duty to the business and excluded Defendants from any further

access to the business bank accounts so as to prevent further unauthorized withdrawals. (*Id.* at ¶ 16.) Defendants then blocked Mr. Giudici from accessing the business email and social media accounts. (*Id.* at ¶ 17.) At a subsequent meeting, Mr. Sandoval and Mr. Giudici argued over the partnership and Mr. Sandoval admitted to using partnership funds for personal use and stated he was entitled to them as a business partner. (*Id.* at ¶ 19.) Mr. Giudici told Mr. Sandoval the partnership was not working out as Mr. Sandoval never invested in the business as he was supposed to. (*Ibid.*) Mr. Sandoval made an inappropriate scene at the business in front of students when he picked up his belongings, and scared students and parents with threatening language and behavior. (*Id.* at ¶ 21.)

Defendants then cut Mr. Giudici off from the payment applications and funneled money to themselves for several months. (Complaint, ¶ 22.) Mr. Giudici is unable to fix this issue. (*Id.* at ¶ 23.) Defendants then began disparaging Mr. Giudici by lying to the customers of the business via social media. (*Id.* at ¶¶ 24-27.) Upon inspection of the financial records, Mr. Giudici and counsel found many more unauthorized withdrawals from Defendants, who continue to hold certain financial accounts hostage. (*Id.* at ¶¶ 28-29.)

Plaintiffs assert the following causes of action in the Complaint: Breach of Contract, Conversion, Embezzlement, Breach of Fiduciary, Accounting (CCP § 872.140), Breach of Implied Covenant of Good Faith and Fair Dealing, Tortious Interference of Business Advantages, Civil Theft, Defamation, and Fraud. (Complaint, ¶¶ 1-87.) Plaintiffs seek general damages, treble damages, punitive damages, loss of business, emotional distress, pain and suffering, attorney fees, and pre and post judgment interest. (Complaint, p. 18.)

### **Legal Standard**

A “court may, upon any terms as may be just, relieve a party or the party’s legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party’s mistake, inadvertence, surprise, or excusable neglect.” (Code of Civil Proc. §473, subd. (b).)

“In a motion under section 473 the initial burden is on the moving party to prove excusable neglect by a ‘preponderance of the evidence.’ ” (*Kendall v. Barker* (1988) 197 Cal.App.3d 619, 624.) “An application for relief under section 473 is addressed to the sound discretion of the trial judge.” (*Id.*, at p. 623.) “While section 473 authorizes a court to relieve a party from default suffered through inadvertence, surprise, excusable neglect or mistake, ‘these words are not meaningless, and the party requesting such relief must affirmatively show that the situation is one which clearly falls within such category.’ ” (*Ibid.*) “[A]ffidavits or declarations setting forth only conclusions, opinions or ultimate facts are insufficient.” (*Id.*, at p. 624.)

A motion pursuant to Code of Civil Procedure Section 473 must be made “‘within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken....’ ” (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 258.) “An attorney has both an ethical and statutory obligation to warn opposing counsel, if counsel’s identity is known, of an intent to seek a default and to give counsel a reasonable opportunity to file a responsive pleading.” (*Shapell SoCal Rental Properties, LLC v. Chico’s FAS, Inc.* (2022) 85 Cal.App.5th 198, 203.) “[B]ecause the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default.” (*Elston v. City of Turlock* (1985) 38 Cal.3d

227, 233.)

### **Request for Judicial Notice**

Plaintiffs request the Court to take judicial notice of: (1) the July 1, 2026 substitution of attorney form filed on behalf of Defendant Susana Reyes; and (2) that the docket reflects that the purported substitution was rejected and not accepted by the Court. (RJN ISO Opposition, pp. 1-3.) The Court GRANTS Plaintiffs' request for judicial notice.

### **Analysis**

Defendants argue that the Court should vacate the default of Defendants and allow them to file their answer. (Motion, pp. 5-6.) Defendants assert that they had retained counsel yet unbeknownst to them, the attorneys they hired failed to properly represent them in this matter, which resulted in their default. (*Id.* at p. 5.) This default was thus the result of mistake, inadvertence, surprise, or excusable neglect. (*Id.* at p. 6.)

Plaintiffs assert in the opposition that Code of Civil Procedure subdivision (a)(1) does not provide independent grounds for vacating an entered default. (Opposition, pp 5-6.) Plaintiffs then argue that Defendants cannot establish mistake, inadvertence, surprise, or excusable neglect. (*Id.* at pp. 6-8.) Plaintiffs argue that Defendants' proposed answer does not entitle them to relief and that the length of delay weighs against discretionary relief. (*Id.* at pp. 8-9.) Plaintiffs then contend that they will suffer prejudice if the defaults are set aside due to delay and further business and litigation expense. (*Id.* at pp. 9-11.) Plaintiffs next assert that the balance of equities does not favor vacating the defaults on this record. (*Id.* at pp. 11-12.) Plaintiffs also point out that the substitution of counsel was rejected and that Defendants' conduct does not warrant the "extraordinary procedural relief requested." (*Id.* at pp. 11-12.) The Court notes that California Rules of Court rule 3.1113(f) requires memorandums that exceed 10 pages to include a table of contents and table of authorities. Despite Plaintiffs memorandum being 14 pages, no table of contents or table of authorities was provided.

On reply, Defendants argue that justice, fundamental fairness and statutory and case law in California heavily favor vacating and setting aside the clerk's entry of default and allowing Defendants to vigorously defend this matter on the merits. (Reply, pp. 1-7.)

The Court will grant Defendants' motion to vacate default. First, the Court finds that Defendants have shown excusable neglect because on March 17, 2026, just one day prior to Plaintiffs' filing for entry of default on March 18, 2026, Defendants' attorney told Defendants that the only repercussion is default and that opposing counsel "won't do that since we are [in] communication to resolve." (Sandoval Decl. ISO Motion, Exh. E.) It was excusable for Defendants to trust their attorneys about this. "[B]ecause the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default." (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233.)

Second, Plaintiffs have failed to show that they properly filed for entry of default. The law *requires* an attorney to notify opposing counsel of the intent to seek default and give opposing counsel an opportunity to file a responsive pleading. "An attorney has both an ethical and statutory obligation to

warn opposing counsel, if counsel's identity is known, of an intent to seek a default and to give counsel a reasonable opportunity to file a responsive pleading." (*Shapell SoCal Rental Properties, LLC v. Chico's FAS, Inc.* (2022) 85 Cal.App.5th 198, 203.) Here, neither the Opposition nor the declaration of Jonathan Fu in support of the Opposition show that this occurred. (Opposition, pp. 1-14; Decl. of Jonathan Fu ISO Opposition, ¶¶ 1-7.)

Third, the minute order dated March 13, 2026, for this case states, "DEFENDANTS HAVE BEEN SERVED ON THE CASE. DEFENDANTS NEED TIME TO ANSWER AND OR ATTEMPT INFORMAL SETTLEMENT." (Opposition, Exh. 3.) Plaintiffs' counsel was present for this case management conference and nonetheless, despite that order, proceeded to file the request for entry of default just 3 business days later, on March 18, 2026.

### **Ruling**

For the reasons discussed above, Defendants' motion to vacate default is **GRANTED**. Defendants shall file their answer or responsive pleading within 10 days of notice of entry of this order.

**11. 9:00 AM CASE NUMBER: C25-03386**  
**CASE NAME: CECILY TAYLOR VS. SMITH & COMPANY RESTORATION PRODUCTS, INC.**  
**\*HEARING ON MOTION IN RE: SANCTIONS, ATTORNEY'S FEES AND FILING FEES AGAINST PLAINTIFF PURSUANT TO CCP 128.5**  
**FILED BY: SMITH & COMPANY RESTORATION PRODUCTS, INC.**  
**\*TENTATIVE RULING:\***

The Court on its own motion continues this hearing to October 23, 2026, at 9:00 a.m.

**12. 9:00 AM CASE NUMBER: C25-03739**  
**CASE NAME: SCOTT MCCOY VS. EXACT HOME BUYERS, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY**  
**HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT**  
**FILED BY: RODRIGUES, DEREK**  
**\*TENTATIVE RULING:\***

This hearing is **continued to November 6, 2026** at 9:00 a.m. in this Department. Code of Civil Procedure section 430.41, subdivision (a) and section 435.5, subdivision (a) state nearly identical language concerning meet and confer obligations on a demurrer and motion to strike. The language is as follows:

Before filing a [demurrer / motion to strike] pursuant to this chapter, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the [demurrer / motion to strike] for the purpose of determining if an agreement can be reached that resolves the objections to be raised in the [demurrer / motion to strike]. *If an amended [complaint, cross-complaint, or answer /pleading] is filed, the responding party shall meet and confer **again** with the party who filed the amended pleading*

*before filing a [demurrer / motion to strike] the amended pleading.*

(Emphasis added.)

Rodrigues and Re/Max have failed to show a compliant effort to meet and confer on the amended pleading which is the subject of the present motions. While their attorney declares that she met and conferred with counsel for the plaintiffs, a close reading of the declaration and the briefing demonstrates this effort was made prior to the amendment. This does not meet the statutory requirement that she meet and confer again before filing a the demurrer and motion to strike targeted at the amended complaint.

Additionally, the Declaration of Shannon B. Jones is not signed. "An unsigned paper shall be stricken unless omission of the signature is corrected promptly after being called to the attention of the attorney or party." (Code Civ. Proc., § 128.7 (a), emphasis added.) The declaration filed on April 24, 2026 is stricken.

This matter is continued so that the parties can engage in a good faith meet and confer process that complies with the above-mentioned statutes. Re/Max and Rodrigues shall file and serve a new declaration showing compliance with the meet and confer requirements by October 9th. If the parties reach an agreement about any of the matters raised in the motion, the declaration shall include a description of these matters.

**13. 9:00 AM CASE NUMBER: C25-03739**  
**CASE NAME: SCOTT MCCOY VS. EXACT HOME BUYERS, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY**  
**\*HEARING ON MOTION IN RE: STRIKE PORTIONS OF 1ST AMENDED COMPLAINT**  
**FILED BY: RODRIGUES, DEREK**  
**\*TENTATIVE RULING:\***

Please see Line 12.

**14. 9:00 AM CASE NUMBER: MSC21-01379**  
**CASE NAME: MOFFETT VS. SONIC WALNUT CREEK**  
**\*HEARING ON MOTION IN RE: POST-JUDGMENT ATTORNEY'S FEES AND COSTS/CONT'D FROM 8/24/2026 TO 9/18/2026 PER TR**  
**FILED BY: MOFFETT, JAMES**  
**TENTATIVE RULING**

The Court finds the costs described by the Plaintiff to be reasonable, as to the hourly rates charged, the number of hours expended and the lodestar multiplier. The Court grants the Plaintiff's motion for Post-Judgment Attorneys' Fees and Costs in the following amounts: **\$7,816 in post-judgment attorneys' fees** (representing \$7,899.00 minus \$83 for the cost of the revised writ of execution) and **\$544.77** in post-judgment costs. The total of **\$8,360.77** is due to Plaintiff's attorneys 30 days from the date of service of notice of entry of this order.

15. 9:00 AM CASE NUMBER: MSC21-02370

CASE NAME: MALIK VS. FIERRO

MOTION TO BE RELIEVED AS COUNSEL MOTION TO BE RELIEVED AS COUNSEL RE: SANJEET S.

GANJAM FILED 8/17/26 BY ANIL MALIK

FILED BY: MALIK, ANIL

**\*TENTATIVE RULING:\***

The Motion to be Relieved as Counsel for Plaintiff and Cross-Defendant Anil Malik is granted. The Court will execute the proposed order lodged with the Court on August 18, 2026. The order will become effective upon service of the order upon the client.

16. 9:00 AM CASE NUMBER: MSC22-00300

CASE NAME: AZAMEY VS CARAPIA

HEARING ON SUMMARY MOTION SUMMARY ADJUDICATION - JAMES UNGER

FILED BY:

**\*TENTATIVE RULING:\***

Before the Court is Plaintiff and Cross-Defendant Mariam Azamey and Plaintiff James Unger (collectively, "Cross-Defendants")'s motion for summary adjudication. The Motion relates to Defendant and Cross-Complainant Pamela Parker ("Cross-Complainant")'s Cross Complaint for (1) trespass, (2) negligence, (3) intentional infliction of emotional distress, (4) negligent infliction of emotional distress, and (5) civil conspiracy. The Motion is unopposed.

As a threshold issue, the Court notes that there is a procedural defect with the Separate Statement. A separate statement seeking summary adjudication must state verbatim the noticed issues from the notice of motion at the beginning of each issue for summary adjudication. (See Calif. Rules Court, rule 3.1350, subd. (b); *Truong v. Glasser* (2010) 181 Cal.App.4th 102, 118.) Here, Cross-Defendant's Separate Statement is not organized by either cause of action or issue; instead, it has a single category of "Undisputed Material Facts in Support of Summary Adjudication." This does not comply with Rule of Court 3.1350(b).

The court's power to deny summary judgment on the basis of failure to comply with California Rules of Court, rule 3.1350 is discretionary, not mandatory. (See *Cadlo v. Owens-Illinois, Inc.* (2004) 125 Cal.App.4th 513, 523; cf. *San Diego Watercrafts, Inc. v. Wells Fargo Bank* (2002) 102 Cal.App.4th 308, 315–316.)

In lieu of denying the motion based upon a defective separate statement in this case, the Court elects to treat the motion as one for summary judgment only.

For the following reasons, the Motion is **denied**.

**Brief Factual Allegations and Procedural Background**

This is a property dispute between neighbors regarding an easement. Plaintiffs' Property is the dominant tenement of a 20-foot-wide easement that lies 12.5 feet on the Carapia Property and 7.5

feet on the Parker Property. (FAC at ¶ 8.) They allege several encroachments on this easement since their purchase of the property including overgrown vegetation, inoperable vehicles, and a screened patio. (*Id.* at ¶ 10(a).) Plaintiffs also allege that Carapias have maintained a fence within the 12.5 foot portion of the easement on the Carapia Property. (*Id.* at ¶ 10(b).)

Defendant Parker filed a Cross-Complaint for (1) trespass, (2) negligence, (3) intentional infliction of emotional distress, (4) negligent infliction of emotional distress, and (5) civil conspiracy on April 12, 2022.

Plaintiffs filed a verified first amended complaint for (1) quiet title, (2) declaratory relief, (3) easement by necessity, (4) nuisance, (5) negligence per se, (6) slander of title, and (7) injunctive relief on November 29, 2022.

#### Legal Standard

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.)

Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) Even though the instant motion is unopposed, the Court cannot grant summary judgment unless Defendant meets the initial burden. (See *Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 305 [trial court order granting summary judgment reversed despite lack of timely-filed declaration that was proper under CCP § 2015.5 because unless defendant meets his initial burden, summary judgment cannot be granted “even if the opposing party does not respond sufficiently or at all.”].) The scope of the initial burden is defined by the pleadings. (See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal. App. 3d 1, 18.)

#### Analysis

The gravamen of Cross-Defendants’ motion is their argument that Cross-Complainant does not have evidence to support her claims.

The Supreme Court in *Aguilar* held that pointing out the absence of evidence to support a plaintiff’s claim is insufficient to meet the moving defendant’s initial burden of production. The defendant must also produce evidence establishing that the plaintiff cannot reasonably obtain evidence to support his or her claim. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 855, fn. 23; see also *Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891 [“pointing out the absence of evidence to support a plaintiff’s claim is insufficient to meet the moving defendant’s initial burden of production. The defendant must also produce evidence that the plaintiff cannot reasonably obtain evidence to support his or her claim.”]; see *Zoran Corp. v. Chen* (2010) 185 Cal.App.4th 799, 808 [“It was not enough simply to assert that [plaintiff] had no evidence supporting an element of each cause of action; a moving defendant must indeed present[] evidence, such as affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice must or may be taken.”] [internal quotations and emphasis omitted].)

Here, rather than submit deposition testimony or discovery responses, the moving parties rely entirely on the declaration testimony of their counsel. His testimony reads:

On February 3, 2025, I took the deposition of Defendant Pamela Parker. On February 4, 2025, I took the deposition of Defendant Jorge Carapia, followed by the deposition of

Defendant Maureen Carapia. The parties have also exchanged written discovery. To date, no medical or psychological records, or specific deposition testimony has been offered by any Defendant regarding the extent or impact of the alleged emotional harm they have suffered.

Based on written discovery and depositions, the parties simply are neighbors with no other preexisting relationship, have not engaged in any prior business dealings, professional relationships, or other interactions that would establish a special relationship between them.

(Brink Decl. at para. 8,9.)

Counsel's declaration does not attach the deposition transcripts or the discovery responses. This is inadequate to meet Cross-Defendants' initial burden under *Aguilar*. Consequently, they are not entitled to summary judgment.

**17. 9:00 AM CASE NUMBER: MSC22-00300**

**CASE NAME: AZAMEY VS CARAPIA**

**HEARING ON SUMMARY MOTION SUMMARY ADJUDICATION - MARIAM AZAMEY**

**FILED BY:**

**\*TENTATIVE RULING:\***

Before the Court is Plaintiff and Cross-Defendant Mariam Azamey and Plaintiff James Unger (collectively, "Cross-Defendants")'s motion for summary adjudication. The Motion relates to Defendant and Cross-Complainant Maureen Carapia and Jorge Carapia (collectively, "Cross-Complainants")'s Cross-Complaint for (1) quiet title based on adverse possession, (2) trespass, (3) negligence, (4) intentional infliction of emotional distress, (5) negligent infliction of emotional distress, and (6) civil conspiracy. The Motion is unopposed.

As a threshold issue, the Court notes that there is a procedural defect with the Separate Statement. A separate statement seeking summary adjudication must state verbatim the noticed issues from the notice of motion at the beginning of each issue for summary adjudication. (See Calif. Rules Court, rule 3.1350, subd. (b); *Truong v. Glasser* (2010) 181 Cal.App.4th 102, 118.) Here, Cross-Defendant's Separate Statement is not organized by either cause of action or issue; instead, it has a single category of "Undisputed Material Facts in Support of Summary Adjudication." This does not comply with Rule of Court 3.1350(b).

The court's power to deny summary judgment on the basis of failure to comply with California Rules of Court, rule 3.1350 is discretionary, not mandatory. (See *Cadlo v. Owens-Illinois, Inc.* (2004) 125 Cal.App.4th 513, 523; cf. *San Diego Watercrafts, Inc. v. Wells Fargo Bank* (2002) 102 Cal.App.4th 308, 315–316.)

In lieu of denying the motion based upon a defective separate statement in this case, the Court elects to treat the motion as one for summary judgment only.

For the following reasons, the Motion is **denied**.

#### Brief Factual Allegations and Procedural Background

This is a property dispute between neighbors regarding an easement. Plaintiffs' Property is the dominant tenement of a 20-foot-wide easement that lies 12.5 feet on the Carapia Property and 7.5 feet on the Parker Property. (FAC at ¶ 8.) They allege several encroachments on this easement since their purchase of the property including overgrown vegetation, inoperable vehicles, and a screened patio. (*Id.* at ¶ 10(a).) Plaintiffs also allege that Carapias have maintained a fence within the 12.5 foot portion of the easement on the Carapia Property. (*Id.* at ¶ 10(b).)

The Carapia Defendants filed a Cross-Complaint for (1) quiet title based on adverse possession, (2) trespass, (3) negligence, (4) intentional infliction of emotional distress, (5) negligent infliction of emotional distress, and (6) civil conspiracy on April 13, 2022.

Plaintiffs filed a verified first amended complaint for (1) quiet title, (2) declaratory relief, (3) easement by necessity, (4) nuisance, (5) negligence per se, (6) slander of title, and (7) injunctive relief on November 29, 2022.

#### Legal Standard

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.)

Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) Even though the instant motion is unopposed, the Court cannot grant summary judgment unless Defendant meets the initial burden. (See *Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 305 [trial court order granting summary judgment reversed despite lack of timely-filed declaration that was proper under CCP § 2015.5 because unless defendant meets his initial burden, summary judgment cannot be granted "even if the opposing party does not respond sufficiently or at all."].) The scope of the initial burden is defined by the pleadings. (See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal. App. 3d 1, 18.)

#### Analysis

The gravamen of Cross-Defendants' motion is their argument that Cross-Complainants do not have evidence to support their claims.

The Supreme Court in *Aguilar* held that pointing out the absence of evidence to support a plaintiff's claim is insufficient to meet the moving defendant's initial burden of production. The defendant must also produce evidence establishing that the plaintiff cannot reasonably obtain evidence to support his or her claim. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 855, fn. 23; see also *Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891 ["pointing out the absence of evidence to support a plaintiff's claim is insufficient to meet the moving defendant's initial burden of production. The defendant must also produce evidence that the plaintiff cannot reasonably obtain evidence to support his or her claim."]; see *Zoran Corp. v. Chen* (2010) 185 Cal.App.4th 799, 808 ["It was not enough simply to assert that [plaintiff] had no evidence supporting an element of each cause of action; a moving defendant must indeed present[] evidence, such as affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice must or may be taken."] [internal

quotations and emphasis omitted].)

Here, rather than submit deposition testimony or discovery responses, the moving parties rely entirely on the declaration testimony of their counsel. His testimony reads:

On February 3, 2025, I took the deposition of Defendant Pamela Parker. On February 4, 2025, I took the deposition of Defendant Jorge Carapia, followed by the deposition of Defendant Maureen Carapia. The parties have also exchanged written discovery. To date, no medical or psychological records, or specific deposition testimony has been offered by any Defendant regarding the extent or impact of the alleged emotional harm they have suffered.

Based on written discovery and depositions, the parties simply are neighbors with no other preexisting relationship, have not engaged in any prior business dealings, professional relationships, or other interactions that would establish a special relationship between them.

(Brink Decl. at para. 8,9.)

Counsel's declaration does not attach the deposition transcripts or the discovery responses. This is inadequate to meet Cross-Defendants' initial burden under *Aguilar*. Consequently, they are not entitled to summary judgment.

#### Discovery Law & Motion

**18. 9:01 AM CASE NUMBER: MSC19-01794**

**CASE NAME: MURPHY VS LU**

**\*HEARING ON MOTION FOR DISCOVERY COMPEL LU TO RESPOND TO FURTHER REQUEST TO PRODUCE DOCUMENTS**

**FILED BY: MURPHY, MICHAEL**

**\*TENTATIVE RULING:\***

Motion to Compel Further Responses to Document Request is denied as moot. Trial has already begun.

#### Courtroom Clerk's Session

**19. 10:00 AM CASE NUMBER: C22-01744**

**CASE NAME: JESSE RIVERA VS. ZULAIKHA AKBARZADA**

**HEARING IN RE: PROVE-UP SET THE COURT**

**FILED BY:**

**\*TENTATIVE RULING:\***

Parties to appear in person in Dept. 32.

20. 10:00 AM CASE NUMBER: C23-02865  
CASE NAME: BRENT MASON VS. MICHAEL ACCURSO  
SETTLEMENT CONFERENCE MENTOR  
FILED BY:  
**\*TENTATIVE RULING:\***

Parties to meet with settlement mentor.

21. 10:00 AM CASE NUMBER: C24-02568  
CASE NAME: NORMA BASILIO VS. DONGWON JANG  
ISSUE CONFERENCE  
FILED BY:  
**\*TENTATIVE RULING:\***

Vacated by Notice of Conditional Settlement filed 9/14/26.

22. 10:00 AM CASE NUMBER: C24-02568  
CASE NAME: NORMA BASILIO VS. DONGWON JANG  
SETTLEMENT CONFERENCE WITH MENTOR  
FILED BY:  
**\*TENTATIVE RULING:\***

Vacated by Notice of Conditional Settlement filed 9/14/26.

23. 10:00 AM CASE NUMBER: C25-03095  
CASE NAME: WELLS FARGO BANK, NATIONAL ASSOCIATION VS. ROSEWOOD COMMONS  
PROPERTY OWNER, LLC  
\*FURTHER CASE MANAGEMENT CONFERENCE  
FILED BY:  
**\*TENTATIVE RULING:\***

Parties to appear by Zoom for further CMC.

24. 10:00 AM CASE NUMBER: C25-03096  
CASE NAME: WELLS FARGO BANK, NATIONAL ASSOCIATION VS. @CENTRAL PROPERTY OWNER,  
LLC  
\*FURTHER CASE MANAGEMENT CONFERENCE  
FILED BY:  
**\*TENTATIVE RULING:\***

Parties to appear by Zoom for further CMC.

25. 10:00 AM CASE NUMBER: C25-03322  
CASE NAME: WELLS FARGO BANK, NATIONAL ASSOCIATION VS. RAPID HOLDCO, LLC  
\*FURTHER CASE MANAGEMENT CONFERENCE  
FILED BY:  
**\*TENTATIVE RULING:\***

Parties to appear by Zoom for further CMC.